

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:

YOHAIRO D. RIVERAS-TORRES,

VERIFIED COMPLAINT

Plaintiff(s),

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER SHAWN O'CONNOR
and "JOHN DOE" being the fictitious name of the other arresting
officer,

Defendant(s).

Plaintiff, by his attorneys, SACCO & FILLAS, LLP, as and for his Verified Complaint,
respectfully alleges, upon information and belief:

1. The plaintiff, **YOHAIRO D. RIVERAS-TORRES**, at all times herein mentioned was and still is a resident of the County of Kings and the State of New York.
2. At all times herein mentioned, defendant City of New York, was and still is a municipal corporation, created, organized and existing under and by virtue of the laws of the State of New York.

NOTICE OF CLAIM

3. Prior to the commencement of this action, a notice of claim in writing was served on behalf of **YOHAIRO D. RIVERAS-TORRES**, upon City of New York in accordance with Section 50-e of the General Municipal Law.
4. Within ninety days (90) of the occurrence herein (on or about February 3, 2024), a notice of claim in writing was served on behalf of **YOHAIRO D. RIVERAS-TORRES**, upon City of New York in accordance with Section 50-e of the General Municipal Law.
5. Prior to the commencement of this action, notice of the intention of **YOHAIRO D. RIVERAS-TORRES** to commence an action, unless the claim presented was adjusted

within the prescribed time as set forth by applicable law to adjust such claims, was served on behalf of **YOHAIRO D. RIVERAS-TORRES** upon City of New York.

6. Although more than thirty (30) days have elapsed since service of such notice of claim, City of New York neglected and has refused to pay said claim or adjust same.
7. A hearing pursuant to General Municipal Law 50-h has been held.
8. This action is commenced within one (1) year and ninety (90) days, of which such date is May 3, 2025, the date of the disposition of wrongful arrest as herein set forth occurred.

AS AND FOR A FIRST CAUSE OF ACTION FOR MALICIOUS PROSECUTION

9. Plaintiff, **YOHAIRO D. RIVERAS-TORRES**, incorporates by reference the allegations contained in the preceding paragraphs as though fully set forth herein
10. On or about February 3, 2024, the plaintiff **YOHAIRO D. RIVERAS-TORRES** was wrongfully arrested for wrongfully arrested.
11. At all times herein mentioned, **YOHAIRO D. RIVERAS-TORRES**, was maliciously and without probable reason or cause, inculpated in criminal actions in which he did not participate, by **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER SHAWN OCONNOR** and **“JOHN DOE”** being the fictitious name of the other arresting officer.
12. At all times herein mentioned, the defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER SHAWN O’CONNOR** and **“JOHN DOE”** being the fictitious name of the other arresting officer, maliciously instituted a judicial proceeding without probable cause for doing so, which forced **YOHAIRO D. RIVERAS-TORRES**, to expend money and retain an attorney for the scheduled Court hearing.
13. The cause of action for malicious prosecution arose on February 23, 2024, with the dismissal of the criminal action against **YOHAIRO D. RIVERAS-TORRES** in the County of Kings, City and State of New York.

14. The defendant's conduct constituted malicious prosecution on the part of the defendant against the plaintiff, and this malicious prosecution has caused the plaintiff to undergo extreme mental pain and anguish, humiliation, and damage to his reputation.
15. This malicious prosecution was encouraged, aided, abetted, and incited voluntarily and willfully by the defendants, **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER SHAWN OCONNOR and "JOHN DOE" being the fictitious name of the other arresting officer.**
16. At all times herein mentioned, **YOHAIRO D. RIVERAS-TORRES**, was maliciously and without probable reason or cause, inculpated in criminal actions in which he did not participate, by **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER SHAWN OCONNOR and "JOHN DOE" being the fictitious name of the other arresting officer.**
17. At all times herein mentioned, the defendant **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER SHAWN O'CONNOR and "JOHN DOE" being the fictitious name of the other arresting officer**, maliciously instituted judicial proceedings without probable cause for doing so, which forced **YOHAIRO D. RIVERAS-TORRES** to expend money and retain an attorney for the scheduled Court hearing.
18. The proceeding was prosecuted with actual malice against the plaintiff, **YOHAIRO D. RIVERAS-TORRES.**
19. This action falls within one or more of the exceptions set forth in Section 1602 of the Civil Practice Law and Rules.
20. The plaintiff, because of the foregoing reckless and malicious actions, is entitled to exemplary or punitive damages against the defendants, **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER SHAWN OCONNOR and "JOHN DOE" being the fictitious name of the other arresting officer** in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF PLAINTIFF AGAINST
THE DEFENDANTS**

21. Plaintiff, **YOHAIRO D. RIVERAS-TORRES**, incorporates by reference the allegations contained in the preceding paragraphs as though fully set forth herein.
22. That said incident and resulting injuries to the plaintiff, **YOHAIRO D. RIVERAS-TORRES** were caused solely as a result of the unintentional consequence of an intentional act on the part of the arresting officer, without any culpable conduct on the part of the plaintiff, **YOHAIRO D. RIVERAS-TORRES**, contributing thereto.
23. That as a result of the foregoing, plaintiff is entitled to damages in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION FOR WRONGFUL ARREST

24. Plaintiff, **YOHAIRO D. RIVERAS-TORRES**, incorporates by reference the allegations contained in the preceding paragraphs as though fully set forth herein
25. Specifically, on February 3, 2024, **YOHAIRO D. RIVERAS-TORRES** was wrongfully arrested.
26. The charges were lodged against the plaintiff without probable cause or justification, and were designed to harass and intimidate the plaintiff, to cause the plaintiff to expend great sums of money for his defense, to embarrass the plaintiff in the community, and among his friends and relatives, employer, and co-employees, and to subject plaintiff to a possible term of imprisonment.
27. By reason of the wrongful arrest, plaintiff a was deprived of his liberty and was subjected to scorn and ridicule. Plaintiff **YOHAIRO D. RIVERAS-TORRES** suffered pain and distress of mind and body and sustained significant emotional pain and suffering. Plaintiff **YOHAIRO D. RIVERAS-TORRES** suffered shock and embarrassment. Plaintiff **YOHAIRO D. RIVERAS-TORRES** was arrested, detained, fingerprinted, photographed, and was required to spend large sums of money to defend himself against the prosecution in

- the Criminal Court of Kings County, and in the proceeding before the State. Plaintiff suffered losses and was degraded in the esteem of the community.
28. By the acts and/or omissions described herein, defendants, **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER SHAWN O'CONNOR and "JOHN DOE"** being the fictitious name of the other arresting officer, falsely and intentionally arrested the plaintiff without a warrant, probable cause, just cause, provocation, exigent circumstances, or other lawful reason.
29. The arrest of the plaintiff was objectively unreasonable and in violation of plaintiff's Constitutional rights.
30. The plaintiff was aware of his arrest and confinement as described herein, he did not consent to his arrest and confinement, and his arrest and confinement was not privileged by any law or authority.
31. By the acts and/or omissions described herein, defendants, **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER SHAWN O'CONNOR and "JOHN DOE"** being the fictitious name of the other arresting officer, violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
32. As a direct and proximate result of the foregoing, plaintiff sustained injuries to his physical, mental, and emotional well-being, loss of enjoyment of life, loss of liberty, emotional distress, mental anguish, embarrassment, humiliation, shame, indignity, damage to reputation, loss of income, and was otherwise damaged and injured.
33. This action falls within one or more of the exceptions set forth in Section 1602 of the Civil Practice Law and Rules.
34. The defendants, **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER SHAWN O'CONNOR and "JOHN DOE"'s** conduct was willful, wanton, reckless, malicious and/or exhibited a gross indifference to, and

a callous disregard for human life, safety and the rights of others, and more particularly, the rights, life and safety of plaintiff.

35. The above acts constituted reckless, wanton misconduct and were willfully and maliciously directed against the plaintiff.
36. The plaintiff, because of the foregoing reckless and malicious actions, is entitled to exemplary or punitive damages against the defendants, The City of New York and New York City Police Department, in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION FOR FALSE IMPRISONMENT

37. Plaintiff repeats and realleges each and every allegation previously pled with the same force as if alleged in full herein.
38. By the acts and/or omissions described herein, defendants, The City of New York and New York City Police Department, falsely and intentionally imprisoned the plaintiff without a warrant, probable cause, just cause, provocation, exigent circumstances, or lawful reason.
39. The imprisonment of the plaintiff was objectively unreasonable and in violation of Plaintiff's Constitutional rights.
40. The plaintiff was aware of his imprisonment as described herein, he did not consent to his imprisonment, and his imprisonment was not privileged by any law or authority.
41. By the acts and/or omissions described herein, defendants, **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER SHAWN O'CONNOR and "JOHN DOE"** violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
42. As a direct and proximate result of the foregoing, plaintiff sustained injuries to his physical, mental, and emotional well-being, loss of enjoyment of life, loss of liberty, emotional distress, mental anguish, embarrassment, humiliation, shame, indignity, damage to reputation, loss of income, and was otherwise damaged and injured.

43. Due to the reckless, malicious, willful, wanton, and intentional nature of the foregoing and the need to deter such conduct in the future, plaintiff is entitled to exemplary and/or punitive damages against the defendants.
44. By reason of the foregoing, plaintiff has been damaged in an amount which exceeds the jurisdictional limitation of all other courts lower than the Supreme Court of the State of New York.

AS AND FOR A FIFTH CAUSE OF ACTION FOR ABUSE OF PROCESS

45. Plaintiff, **YOHAIRO D. RIVERAS-TORRES**, incorporates by reference the allegations contained in the preceding paragraphs as though fully set forth herein
46. The defendants herein, **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER SHAWN OCONNOR and "JOHN DOE" being the fictitious name of the other arresting officer** wrongfully and maliciously and with ulterior intent to injure plaintiff, prosecuted a criminal action against the Plaintiff.
47. By reason of the foregoing abuse of process plaintiff was deprived of his liberty, suffered pain and distress of mind and body and sustained significant emotional pain and suffering and was compelled to employ an attorney.
48. The above acts constituted reckless, wanton misconduct and were willfully and maliciously directed against the plaintiff.
49. The plaintiff, because of the foregoing reckless and malicious actions, is entitled to exemplary or punitive damages against the defendants, **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER SHAWN OCONNOR and "JOHN DOE" being the fictitious name of the other arresting officer** in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF
AGAINST THE DEFENDANTS**

50. Plaintiff, **YOHAIRO D. RIVERAS-TORRES**, incorporates by reference the allegations contained in the preceding paragraphs as though fully set forth herein.
51. That the aforesaid conduct on the part of the defendants, **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER SHAWN O'CONNOR** and "**JOHN DOE**" being the fictitious name of the other arresting officer, constituted a violation of the plaintiff, **YOHAIRO D. RIVERAS-TORRES'S** civil rights under 42 USC § 1983 in that the plaintiff was deprived of his rights, privileges and immunities secured to him by the Constitution and laws of the United States and the New York State Constitution by one who under color of a statute or regulation of a state, caused the plaintiff to be so deprived.
52. That the aforesaid use of excessive force on the plaintiff by the defendants, and the subsequent false arrest and imprisonment of the plaintiff by the defendants, deprived the plaintiff of the constitutional right to bodily security and liberty under the Fourteenth Amendment to the United States Constitution, and was an unreasonable physical seizure of the plaintiff under the Fourth Amendment to the United States Constitution.
53. That as a result of the aforesaid occurrence, the plaintiff, **YOHAIRO D. RIVERAS-TORRES**, was caused to, and did sustain, severe, serious and protracted injuries to his person and body.
54. Due to defendants' negligence, plaintiff is entitled to damages in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A SEVENTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF
AGAINST THE DEFENDANTS FOR INTENTIONAL INFLICTION OF
EMOTIONAL DISTRESS

55. Plaintiff, **YOHAIRO D. RIVERAS-TORRES**, incorporates by reference the allegations contained in the preceding paragraphs as though fully set forth herein.
56. Defendants intentionally and deliberately inflicted emotional distress on **YOHAIRO D. RIVERAS-TORRES** by maliciously prosecuting plaintiff, or by abusing the lawful process by unlawful purpose, or by violating **YOHAIRO D. RIVERAS-TORRES'S** constitutional rights, or by falsely arresting and imprisoning the plaintiff, by conspiring against **YOHAIRO D. RIVERAS-TORRES**, or by interfering with plaintiff's state civil rights by threats, coercion, or intimidation, or knew or should have known that emotional distress was the likely result of their conduct.
57. Defendants conduct was extreme and outrageous, beyond all possible bounds of decency and utterly intolerable in a civilized community.
58. The actions of the Defendants were the cause of **YOHAIRO D. RIVERAS-TORRES'S** distress.
59. **YOHAIRO D. RIVERAS-TORRES** is a reasonable man.
60. The emotional distress sustained by **YOHAIRO D. RIVERAS-TORRES** was severe and of a nature that no reasonable man could be expected to endure.
61. As a result of the defendants' extreme and outrageous conduct, Plaintiff was, is, and, with a high degree of likelihood, will continue to be emotionally distressed due to the intentional exclusion.
62. Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT** are liable under the doctrine of *respondeat superior*.
63. As a result of the defendants' extreme and outrageous conduct, plaintiff has suffered and will continue to suffer mental pain and anguish, severe emotional trauma, embarrassment, and humiliation.
64. Due to defendants' negligence, plaintiff is entitled to damages in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR AN EIGHTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF
AGAINST THE DEFENDANTS FOR NEGLIGENT HIRING AND RETENTION**

65. Plaintiff **YOHAIRO D. RIVERAS-TORRES** incorporates by reference the allegations contained in the preceding paragraphs as though fully set forth herein.
66. That said incident and resulting injuries were caused by the negligence of the defendant, **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT** in the hiring and retention of **POLICE OFFICER SHAWN O'CONNOR and "JOHN DOE"** being the fictitious name of the other arresting officer, and in the supervision and retention same, without any culpable conduct on the part of the plaintiff, Yohairo D. Riveras-Torres, contributing thereto.
67. Due to defendants' tortious and/or wrongful conduct as herein alleged, plaintiff **YOHAIRO D. RIVERAS-TORRES** is entitled to damages.

WHEREFORE, the plaintiffs demand:

- A. Judgment awarding damages on the first cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- B. Judgment awarding damages on the second cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- C. Judgment awarding damages on the third cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- D. Judgment awarding damages on the fourth cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

E. Judgment awarding damages on the fifth cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

F. Judgment awarding damages on the sixth cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

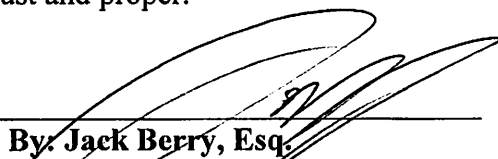
G. Judgment awarding damages on the seventh cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

H. Judgment awarding damages on the seventh cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction; and

I. Interest, the costs and disbursements of this action, together with such other and further relief as to this Court seems just and proper.

WHEREFORE, the plaintiff demands judgment awarding damages and punitive damages, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with interest and the costs and disbursements of this action, and such other and further relief as to this Court seems just and proper.

Dated: Astoria, New York
July 3, 2024



By: Jack Berry, Esq.
SACCO & FILLAS, LLP
Attorneys for Plaintiff
31-19 Newtown Avenue
Seventh Floor
Astoria, New York 11102
(718) 746-3440
Our File No.: 31896-24

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:

YOHAIRO D. RIVERAS-TORRES,

**ATTORNEY'S
VERIFICATION**

Plaintiff(s),

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER SHAWN OCONNOR
and "JOHN DOE" being the fictitious name of the other arresting
officer,

Defendant(s).

Jack Berry, Esq., an attorney duly admitted to practice law in the State of New York, makes the following affirmation under the penalty of perjury:

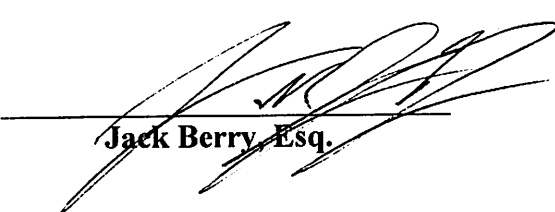
I am of the firm of **SACCO & FILLAS, LLP**, the attorneys of record for the plaintiff.

I have read the foregoing Complaint and know the contents thereof; the same is true to my own knowledge except as to the matters therein stated to be alleged on information and belief and that as to those matters, I believe them to be true.

This verification is made by affirmant and not by plaintiff because she is not in the County of Queens, which is the County where your affirmant maintains offices.

The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are correspondence had with the said plaintiff, information contained in the said plaintiff's file, which is in affirmant's possession, and other pertinent data relating thereto.

Dated: Queens, New York
July 3, 2024



Jack Berry, Esq.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:

YOHAIRO D. RIVERAS-TORRES,

Plaintiff(s),

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER
SHAWN OCONNOR
and "JOHN DOE" being the fictitious name of the other arresting
officer,

Defendant(s).

SUMMONS and VERIFIED COMPLAINT

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed documents are not frivolous.

Dated: Astoria, NY
July 3, 2024

Signature: _____

Jack Berry, Esq.

SACCO & FILLAS, LLP

Attorneys for Plaintiff(s)

Sherri Paul

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Astoria, NY 11102

(718) 746-3440

Our File # 30161-23